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Court

FEDERAL SHARIAT COURT

Date

2011-03-16

Appeal No.

CRIMINAL APPEAL NO. 34/P OF 2005 LINKED WITH CRIMINAL APPEAL NO. 21/P OF 2006

Judge

MR. JUSTICE AGHA RAFIQ AHMED KHAN, CJ. MR. JUSTICE SYED AFZAL HAIDER

Parties

1. SHAKEEL2. SHABBIR (APPELLANTS) VERSUS THE STATE (RESPONDENT)

Lawyers

MUHAMMAD ZAIULLAH & AJMAL KHAN FOR APPELLANTS. ASADULLAH KHAN CHAMKANI FOR STATE.

Statutes

PENAL CODE (XLV OF 1860) - SS. 302(B), 392 CONFESSION CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 164, 364 ZINA (ENFORCEMENT OF HUDOOD) ORDINANCE (VII OF 1979) - S.8(A). OFFENCES AGAINST PROPERTIES (ENFORCEMENT OF HUDOOD) ORDINANCE (VI OF 1979) - S. 7. CONFESSION QANUN-E-SHAHADAT ORDER (P.O. 10 OF 1984) - ARTICLE 40. ARTICLE 40 CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 161, 164 IBID - S. 364 TAWBAH AND IQRAR CONFESSION AND RES GESTAE

Judgment

SYED AFZAL HAIDER, J.-The appellants Shakeel son of Taj Mali and Shabir son of Shakoor Khan have assailed the judgment dated 13.7.2005 whereby the learned Sessions Judge, Nowshera, returned a verdict of guilt against them.

PRELIMINARY The appellants were convicted and awarded sentences on different counts as under : - Shakeel.

(i) U/s. 392, PPC: Five years' simple imprisonment with payment of fine of Rs. 10,000/- in default thereof four months' S.I.

(ii) U/s. 302(b), PPC: Life imprisonment with payment of Rs. 100,000/- as compensation under section 544-A of the Code of Criminal Procedure, for legal heirs of the deceased in default thereof six months' Simple Imprisonment.

Shabir.

(i) U/s. 392, PPC: Five years' rigorous imprisonment with payment of Rs. 50,000/- in default thereof eight months' simple imprisonment.

(ii) U/s. 302(b), PPC: Life imprisonment with payment of Rs. 100,000/- as compensation under section 544-A, of the Code of Criminal Procedure, for the legal heirs of the deceased in default thereof six months' rigorous imprisonment.

All the above sentences of the appellants were ordered to run concurrently and the benefit of section 382-B of the Code Criminal Procedure was extended to the appellants.

PROSECUTION CASE 2. Briefly stated the facts of the prosecution case as stated in Murasla Ex.PA/1 are that on 28.11.2003 Zain Khan, Additional Station House Officer Police Station Nowshera Kalan PW.14 accompanied by other police officials, was on patrol duty at Manki Sharif when the complainant Muhammad Pervez alongwith Abdur Rehman Abbasi, Haji Abdul Majeed Naib Subidar alongwith other officials of Khasadar force and accused Afzal Ali, under arrest, met him. The complainant lodged an information which was recorded as murasla Ex.PA/1 and sent to police station for registration of formal FIR on the same day at 17.00 hours.

The complainant stated that he owns Toyota Car, Model 1993, registered No. 9584/RIR which was operated by Abdul Malik. On 25.11.2003 at about 1600 hours three persons hired the cab as "special booking" for an unknown destination but the driver did not return. He had undertaken search when he received telephonic information from Nasrullah Afridi, a press reporter, that his car was seen in tribal area and the driver had been murdered some where. The complainant also stated that two accused are in the custody of staff of Political Agent. The complainant also disclosed that he identified his car in Jamrad and that Afzal accused had disclosed that he alongwith Shakeel and Shabbir accused had taken away the said car after killing the driver. The dead-body was lying at the place of occurrence.

3. On receipt of this information the witness alongwith others proceeded to the place of occurrence where dead-body had been deposited. He prepared the injury statement (Ex.PW14/I) and also the inquest report (Ex.PW14/2) of the deceased. The dead-body was entrusted to Amber Shah, Foot Constable, who escorted the same upto the mortuary for postmortem examination. The dead-body had been recovered on the pointation of accused/appellants Shakeel and Shabir.. Report of the completion of police investigation under section 173 of the

Code of Criminal Procedure was submitted in the Court of Additional Sessions Judge, Nowshera requiring the accused to face trial. The accused were formally charged on 9.2.2005 by the learned Trial Court under section 17(4) Harraba Offences Against Property (Enforcement of Hudood) Ordinance, 1979 and under section 412 of the Pakistan Penal Code. Accused did not plead guilty and claimed to be tried.

4. The prosecution, in support of its case, produced fourteen witnesses at the trial. The gist of their evidence is as under:-- (i) Dr. Ijaz Ahmed, Medical Officer appeared as P.W.I. He had conducted the post-mortem examination on the dead-body of the deceased on 28.11.2003 at 8:00 p.m. and observed as under: "External Examination: 1. A circular ligature mark present around the neck above thyroid cartilage size 1" width 1/4" deep and more deep in front.

2. A lacerated wound size 3x3" present on left fore head.

3. Lacerated wound size 1 x 1" on occiput.

4. A lacerated wound 1 x 2" on left jaw.

5. Nose full of blood..

6. Post-mortem lividity present on front of the body.

7. Full smell present.

Internal Injuries: Scalp, skull plus brain, membrane injured.

Thorax: Larynx injured.

Abdomen: Mouth pharynx injured and stomach contained semi digested food".

Remarks: In his opinion, death occurred due to injuries to brain tissues. The duration between injury and death was within ten minutes while the time that elapsed between death and postmortem examination was within four days.

(ii) PW.2, Shamsheer Ali Khan, Station House Officer Police Station Nowshera Kalan had on the order of the Trial Court, submitted separate police investigation completion report under Juvenile Justice System Ordinance, against accused Shakeel as the latter was a minor.

(iii) PW.3 Shamsuddin, Assistant Sub-Inspector had formally registered FIR No.574/2003 Ex.PA on receipt of murasila Ex.PA/1.

(iv) Najeem Khan IHC, a marginal witness of the recovery of motor car bearing registration No. RIR-9584 alongwith its ignition key, appeared at the trial as PW.4. The Investigating Officer had taken possession of this car vide memo. Ex.PC.

The car was handed over to the Investigation Officer by the Political Line Officer at Jamrud.

(v) PW.5 Ambar Shah Foot Constable appeared to state that he escorted the corpse of deceased intact to the mortuary. After the post-mortem examination, the doctor handed over to him blood-stained clothes, t shirt P.1, shalwar P.2, a sweater P.3, bunyan P.4, a muffler P.5, socks P.6 of the deceased, which were handed over to the Investigation Officer by him in the Police Station. ' (vi) PW.6 Hamidullah, Foot Constable, appeared to state that he was a marginal witness of the

recovery memo. Ex.PC/1 whereby Investigation Officer took into possession the blood-stained shirt P.1, shalwar P.2, bunyan P.3, a sweater P.4, a muffler P.5 and socks P.6 in his presence. These articles belonged to deceased and were produced by Ambar Shah Foot Constable before the Investigation Officer in his presence.

(vii) PW.7. Babar, Foot Constable was driver of official vehicle. He attested the recovery memo. Ex.PC/2 whereby the Investigation Officer took into possession the blood-stained pebbles P.7 from the place of occurrence. The Investigation Officer sealed the same into a parcel.

(viii) Jamshed, Assistant Sub-Inspector appeared as PW.8 to state that he was posted as Investigation Head. Constable at Police Station Nowshera Kalan. The Investigation Officer took into possession registration book of the motor car bearing No. 9584-RIR. two pair of clothes consisting of shirt and shalwar P.8 to P. 11 of the accused Afzal Ali (now dead) and Shakeel accused, vide memo, Ex.PC/3. He stated that the accused Afzal Ali led the Investigation Officer to a place at Jamrud Khyber Agency for the recovery of these articles which he had buried.

(ix) Abdul Majeed, Naib-Subidar, Khasadar Force Jamrud, was produced by prosecution as PW.9. He had arrested accused Afzal Ali and Shakeel at Check Post Jamrud Adda at Khyber Agency "on the information of the person from PCO about the movement of accused that they have snatched motorcar from a person." Thereafter he produced the accused before the local police of Police Station Nowshera Kalan. At Nowshera Kalan, in his presence, the accused led the police party to the place where they had thrown the dead-body after killing him and snatching his car. The police recovered the corpse on the pointation of accused.

This Witness also verified the pointation memo. Ex. PCM.

) Sangeen Khan appeared at the trial as PW.10 to state that in his presence the accused Afzal Ali and Shakeel, while in police custody, led the police party to the spot where they had snatched the car. The accused also pointed the place where they had murdered the driver of the car and they also pointed out the place where the dead-body of the deceased was dragged. In this regard the pointation memo. Ex.PW 10/1 was prepared.

t (xi) Muhammad Bashir was produced by prosecution at the trial as PW. 11 to state that the deceased was his friend. He identified the dead-body at the time of post-mortem examination.

(xii) PW.12 Mst. Rozina Rehman, Senior Civil . Judge/Judicial Magistrate affirmed that on 10.12.2003 she recorded three confessional statements: Ex.PW 12/5 related to Shakeel accused while the confessional statement Ex. PW 12/2 pertained to accused Afzal Ali and the third confessional statement Ex. PW.12/8 referred to Shabbir accused. These statements were recorded by her on the same day. The witness certified the confessional statements and the related certificates, etc. to be correct.

(xiii) PW.13 is Fazal Subhan, Sub-Inspector. He stated that, after registration of the case, the investigation was entrusted to him. On 28.11.1993 he visited the spot and prepared site plan Ex.PB on the pointation of Afzal Ali accused. On 5.12.2003 the accused Afzal Ali and Shakeel again pointed out the place of occurrence which fact finds mention in the pointation memo.

Ex.PWIO/1. He also made .additions in the site plan Ex.PB with red ink. On 28.11.2003 he took into possession the bloodstained pebbles from the spot vide memo. Ex.PC/2. He also took into possession blood-stained garments of deceased vide memo. Ex.PC/1 which were produced before him by Constable Ambar Shah. Thereafter on 8.12.2003 he recovered and took into possession belonging of the deceased on the pointation of accused Shabir, Afzal Ali and Shakeel

and in this regard he prepared memos. Ex.PW 10/3 and Ex.PW 10/4. He also took into possession car P. 17 produced by Iqbal Khan Steno in the office of Line Officer Political Jamrud, vide recovery memo. Ex.PC. He also took into possession belongings of deceased on the pointation of the accused Shabbir, Shakeel and Afzal Ali vide Memo. Ex.PW. 10/2, Ex. PW. 10/3 and Ex.PW. 10/4 prepared against each accused. Accused Shabbir while in police custody pointed out the place of occurrence vide pointation memo. Ex.PW 13/5. Certain other memos, and items were mentioned by this witness. He produced the accused before the Judicial Magistrate, Nowshera on 10.12.2003 where their confessional statements were recorded and the accused were then sent to judicial lock-up.

(xiv)PW, 14 Zain Khan was Additional Station House Officer of Police Station Nowshera Kalan. The role and the part played by him in the investigation has already been discussed in the early part of this judgment.

(xv) Raja Sajid Mehmood was examined as CW.I. He stated that Raja Parvez was his elder brother who died on 24.7.2004. He produced death certificate Ex.CWI/1, issued by Shafa International Hospital, Islamabad and also produced certificate about the death of complainant which had been issued by the Union Council No. 3 Dok Hukamdad Rawalpindi. This explained the reason why the evidence of complainant could not be recorded at the trial.

THE DEFENCE PLEA 5. After close of the prosecution evidence, the * .

appellants/accused were examined under section 342 of the Code of Criminal Procedure, wherein they denied the prosecution allegations and pleaded innocence. In response to the question "Why this case against you/why the PWs have deposed against you," the reply was as follows "I am innocent. In fact first the complainant party has kept me in illegal confinement and then the police officials badly tortured me just to compel me to thumb impress over the statement and the confessional proceedings were conducted without observing the legal formalities." The appellants did not opt to make statements on oath in terms of section 340(2) of the Code of Criminal Procedure. No evidence was produced in their defence.

THE IMPUGNED JUDGMENT 6. The reasons that persuaded the learned Trial Court to return a verdict of guilt against all the accused were summed up in paragraphs 10 and 11 of the impugned judgment which are reproduced below:- "All the three accused have made confessional statements, in which they have admitted their guilt. Their confessional statements - were recorded by Mrs. Rozina Rehman Senior Civil Judge, the then Judicial Magistrate, Nowshera, on 10.12 2003.

She after observing all the legal formalities, recorded the confessional statements. Ex. PW 12/2, Ex.PW 12/5 and Ex.PW 12/8 are the confessional statements of accused Afzal Ali, Shakeel and Shabir respectively. These confessional statements were recorded on 10.12.2003, in which they decided to snatch a car and then to sell it. On 25.11.2003 they hired a taxi car for Sherpio Hospital, Peshawar. They started towards Peshawar side. At evening time they reached Nowshera. The driver was not knowing Pushtu. At Nowshera Bazar, they took meal, but Shabir and the deed did not take it. They then directed the driver to take Shakeel and Afzal Ali to Bahadar Khel, but he did not agree. Shabbir informed him to drop him in Bahadar Khel, therefore, the deed started with them towards Bahadar Khel. When they reached a deserted Jangle, the driver stopped the taxi. They got down from the taxi alongwith Shakeel. The accused Shakeel hit the driver with a stone on his head. Accused Shabir and Afzal Ali threw him to the ground. Accused Afzal Ali sat on his chest.

Accused Shakeel gave him blows with stones. Accused Shakeel and Afzal Ali dragged him to a

drain. They searched the driver and recovered one driving licence, some documents etc. and cash amount of Rs. 500/- from him. Accused Afzal Ali took the driver seat. As the boots and clothes of accused Shakeel and Afzal Ali were stained with blood, therefore, they threw the same on the way and changed the clothes in the car. After covering some distance, the driving licence and other documents were hidden by Shabbir behind a stone. They went to Karkhano, purchased one bottle of wine, and charas and spent the night there. On the following morning they went to Jamrud, gave Rs. 5000/- to Shabir and directed him to go to Azad Kashmir. They hid the blood-stained clothes of them and registration copy etc. in a place and went to PCO. Afzal Ali made phone to Skhakot, but they could not sell the car. The Khasadar were not in uniform. They heard their conversation, and informed other Khasadar, who came and arrested them. At their pointation the Khasadar recovered the dead-body of the driver. They brought them to Nowshera Tanji Khattak, where they showed the dead-body of the driver. Blood-stained stones were also lying there. They also pointed out the place of murder of the deed to the police of Nowshera, as well as the place, where blood-stained clothes and registration of the taxi car were lying. All the three accused have made the confessional statements with their sweet will and consent. There was no compulsion on them. Though learned defence counsel for the accused has argued that the accused remained in police custody for 4/5 days and after that they were forced to make the confessional statements, but I do not agree with him. They were not bound to make the confessional statements. They could inform the Magistrate that they were not ready to make the confession or that they were tortured by the police, but they informed the Magistrate that they were making the confessional statements in order to tell truth. Judicial confession of accused though was recorded after 13 days in case cited in 2003 PCr.LJ (Karachi) 1942, but it was held that mere delay would not affect evidentiary value thereof. No time limit is fixed for recording Judicial Confession. It is only the voluntariness and truthfulness of confession, which is to be seen. The Magistrate, who recorded the confessional statement of the accused had no personal interest in the case nor she had any ill-will against the accused.

Not only the accused has made confessional statements, but the PWs have also charged him. The PWs have got no enmity or ill-will with him to falsely implicate him in this case. At his pointation the dead-body, the driving licence etc. and the blood-stained clothes of the accused were recovered. The I.O. has also recovered the blood-stained stone/pebbles from the spot. All the blood-stained articles were sent to the chemical examiner.

* The report of chemical examiner is in favour of the prosecution." ARGUMENTS OF CONTENDING PARTIES 7. We have heard learned counsel for the appellants as well as the learned counsel for State and have gone through the file.

The evidence on record, particularly the confessional statements of the appellants, as well as the statements of appellants recorded under section 342 of the Code of Criminal Procedure have been perused. We have also examined the relevant portions of the impugned judgment. Learned Counsel for the contending parties have been heard.

8. Learned counsel for the appellants raised the following points: (i) That there is no direct evidence of the occurrence; (ii) / That the FIR does not nominate the appellants; (iii) That the confessions were retracted by the appellants; (iv) That the legal formalities required for recording confessional statements were not complied with; and (v) The confession was not recorded by the Trial Court.

Learned counsel placed reliance upon the case of: (a) Muhammad Ayub versus Hussain Kiani and another reported as 2001 SD 557; (b) Shaista Begum v. The State, 2000 SD 264; to urge that conviction based on retracted confession would not be sustainable.

(c) 1. Muhamtpad Nadeem alias Deefni, 2. Muhammad Sabir v. The State; 2007 SD 716 to urge that confession recorded after an un-explained delay of 13 days of the arrest of accused would make the confession unreliable; .

, (d) As if Mahmood v. The State 2005 SD 306 to state that the attending circumstances have to be considered to ascertain the veracity of a confessional statement; and (e) 1, Nadeem alias Gitta, 2. Nadeem Shah v. The State 2003 SD 177; to submit that young first offenders should be dealt with leniently.

9. Learned Counsel appearing on behalf of State supported the conviction and sentences awarded to the appellants. The learned counsel also urged that the dead-body had been recovered on the pointation of appellants. The car as well as the driving licence *and blood-stained clothes of the accused were also recovered on the pointation of appellants. Learned counsel relied upon the case of Nizam-ud-Din v. Riaz reported as 2010 SCMR 457 to urge that conviction can be maintained on retracted confession if it is found truthful, voluntary and confidence inspiring.

10. It was urged at the bar that the confessional statements be also examined on the touch stone of Islamic principles. Learned counsel for the State submitted that a retracted confession can become basis of conviction according to Muslim Jurists. Learned counsel for the appellants however maintained the opposite view.

OBSERVATIONS AND FINDINGS 11. We have given anxious Consideration to the facts of this case which depends on two factors: firstly, discovery of car which was being driven by deceased immediately before his murder as well as his dead-body and other articles belonging to him on the express pointation of appellants and secondly the factum of judicial confessions which were repudiated by appellants at the time of examination under section 342 of the Code of Criminal Procedure. The proposition that needs resolution in the case under consideration therefore is whether a retracted judicial confession, in which the element of earlier pointation by them and consequential discoveries had also been affirmed, gets further corroboration by the evidence of prosecution witnesses who proved discoveries of incriminating material on the pointation of appellants. If so, can the revoked judicial confession under the circumstances become basis of conviction? The other question for consideration would be whether mere discoveries of incriminating material on the proven pointation of an accused can be validly made basis of conviction? The issue of confession according to Islamic jurisprudence will, as canvassed at the bar, also be considered in this judgment.

12. The objection raised by learned counsel for appellants about the recording of confession by a Magistrate other than the Trial Court may be examined at this stage with the help of sections 164 and 364 of the Code of Criminal Procedure. Section 164 does not come in play before the investigation has started and can be invoked only before the trial of accused has actually , commenced. In other words the confession recorded by a Magistrate, i.e. a judicial officer other than the Trial Court, is not valid once the trial has commenced as a consequence of submission of police investigation finalization report under section 173 of the Code of Criminal Procedure. In the instant case the confession by appellants was made on 10.12.2003 before PW. 12 Mrs. Rozina Rehman, Senior Civil Judge/Judicial Magistrate Kohat. The FIR had been recorded on 28.11.2003. The police investigation completion report under section 173 of the Code of Criminal Procedure in this case was submitted on 26.1.2005 under section 17(4), Harraba Offences Against Property (Enforcement of Hudood) Ordinance, 1979. The objection that the confessional statements of appellants were not recorded by the Trial Court has therefore no force because the cognizance of the case was taken by the learned Trial Court two years after the confessions had been recorded by a Magistrate when a separate report was sent finally on 26.1.2005 under

Juvenile Justice System Ordinance, 2000.

13. The objection that the Trial Court alone is competent to record a statement under section 164 of the Code of Criminal Procedure, is not valid also in view of clause (2) and the explanation attached with this section. Clause (2) stipulates that the confession has to be recorded by the Magistrate in the manner provided in section 364 *ibid* and such statement or confession shall then be forwarded to the Magistrate by whom the case is to be enquired into or tried. This is a clear indication that the exercise of recording statement or confession under section 164 *ibid* is a pre-trial exercise and is ordinarily undertaken by a presiding officer who has not taken cognizance of the offence. The Explanation attached to this section stipulates that "It is not necessary that the Magistrate receiving and recording a confession or statement should be a Magistrate having jurisdiction in the case." . » 14. The other provision which deals with recording the examination of accused is contained in Section 364 of the Code of Criminal Procedure. This provision prescribes the procedure and the steps that have to be taken by the presiding officer before and after recording a confessional statement. PW.12 had meticulously followed the procedure and maintained the record of confessions made by the accused which is now part of the file of this case. Section 364 *ibid* prescribes the following steps for examination of an accused person: (i) One accused will be examined at one time; (ii) The whole of examination including every question put to him and every answer given by him shall be recorded in full in the language in which he is examined or in the language of the Court or in English; (iii) The record shall be shown or read to him or interpreted to him in the language which the accused understands and he shall be at liberty to explain or add to his answers; (iv) The record shall then be signed by the accused and the Magistrate or Judge; (v) The presiding officer shall certify under his own « hand that the examination was taken in his presence and hearing and that the record contained a full and a true account of the statement made by the accused; (vi) And in case the examination of the accused is not recorded by the Magistrate or Judge himself, he fr ' shall make a memorandum in his own hand which shall be annexed to the record.

An analysis of the contents of section 364 *ibid* shows that this section stipulates the manner in which the examination of an accused person has to be recorded.

15. Learned counsel relied upon the case of Muhammad Ayub v. Hussain Kiyani 2001 PCr.LJ 578 to canvass the proposition that in Hudood cases the confession recorded by a Magistrate is not legal' as it ought to be recorded by Trial Court. This report is based upon the two following cases: (i) Muhammad Naseer v. The State PLD 1988 FSC 58; and (ii) Mumtaz Khan v. The State 1992 PCrLJ 412.

The case of Muhammad Naseer was decided by a Full Bench of this Court. It had rightly held that in view of provision contained in section 8(a) of Ordinance VII of 1979 a confession recorded by a Magistrate in the Offence of Zina, triable by Sessions Court, would not be valid as the jurisdiction of a Magistrate has been excluded by virtue of Proviso to section 20 *ibid*. This position is true in a case registered under Ordinance VII of 1979 which deals with Zina etc. but the present case relates to Harabah which is covered by Ordinance VIII of 1979. The learned counsel did not , appreciate that the jurisdiction of a Magistrate authroized under section 30 of the Code of Criminal Procedure has been excluded only to the extent that he cannot try an offence punishable under Ordinance, VII of 1979.

Otherwise the provisions of the Code of Criminal Procedure apply in all matters under the Ordinance.

16. It is abundantly clear that the confession contemplated by paragraph (a) of section 8 of Ordinance, Vil of 1979 is the confession made "before a Court of competent jurisdiction."

According to section 20 of the said Ordinance, offences punishable thereunder shall be triable only by a Court of Sessions and not by a Magistrate authorized under section 30 of the Code of Criminal Procedure. Therefore, a Magistrate is not a Court of competent jurisdiction within the meanings of paragraph (a) of Section 8 of the said Ordinance. It is worthy of mention that section 8 of Ordinance VII of 1979 as well as section-6 of Ordinance VIII of 1979, while dealing the mode of proof in the offences of illicit sex and Qazf liable to Hadd, prescribes that confession before a Court of competent jurisdiction alone would be admissible and become a legal basis for recording conviction. This proposition is unassailable in a case registered under Ordinance VII of 1979 but the present case was registered under Ordinance, VI of 1979 i.e., The Offences Against Property (Enforcement of Hudood) Ordinance, 1979. The charge was framed under section 17(4) ibid for the offence of Harabah. Harabah is an aggravated form of theft. Section 16 ibid deals with proof of Harabah which says that provisions of Section 7 shall apply, mutatis mutandis, for proof of Harabah. Paragraph (a) of Section 7 ibid does not stipulate that a confession made before a Court of competent jurisdiction alone would be legal for the purpose of awarding Hadd punishment. Section 7 simply states that the proof of theft (or Harabah for that purpose) shall be in the form that the accused pleads guilty of the commission of theft liable to Hadd. Pleading guilty means a statement made during the trial before the Trial Court either at the stage of framing of charge, or while making statement on or without oath or at any stage of the trial proceedings. The term "pleads guilty" is relatable to the trial alone.

Admission of any fact before the trial would not be covered by the term "pleads guilty". The term "pleads guilty" has therefore a direct nexus with the award of conviction and consequential sentence. An admission made by way of extra-judicial confession or even judicial confession, made before trial has been set up and after commencement of police investigation, does not ipso facto confer jurisdiction upon the Magistrate to record conviction. The Magistrate has to send the statement to the Trial Court as and when the trial is taken up. This aspect is evident from a perusal of sections 243, 265E and 412 of the Code of Criminal Procedure. Such a statement is certainly not of the nature contemplated by section 161 or sections 164/364 of the Code of Criminal Procedure. It is therefore clear that a confession of an accused recorded under section 164 read with section 364 ibid by any Magistrate before the initiation of trial would be treated a valid piece of evidence like other categories of evidence i.e., oral and documentary, brought on record during the trial. There is yet another VII and VIII of 1979 a confession made by an accused before a Magistrate would be valid and legal evidence in proof of the offence of illicit sex and Qazf liable to Tazir.

17. There is a single Bench authority from Peshawar High Court relatable to the case of Mumtaz Khan v. The State 1992 PCrLJ 412 which states that a confession in order to become effective under Hudood Laws must be recorded by the Trial Court. This precedent is based upon the case of Muhammad Naseer which, as noted above, pertains to the offence of Zina alone.

18. In this connection the case of Mst. Shazia Aslam versus The State 2001 MLD 1939 may also be seen. A Division Bench of the Federal Shariat Court, after referring to the case of The State versus Gulab Hussain alias Ghulam Hussain and 3 others PLD 1994 FSC 17, held as under:- "It is well-settled that the "Court of competent jurisdiction" referred to in section 8(a) of the Ordinance means the Trial Court constituted under the provisions of the Zina (Enforcement of Hudood) Ordinance, 1979 and not any other Court and though a confession made before "the Trial Court" would be a sufficient proof of Zina or Zina-bil-Jabr. "liable to Hadd" within the purview of section 8(a) of the Ordinance yet, it does not mean that any confessional statement recorded by a Magistrate under the provisions of Criminal Procedure Code would be irrelevant for the purpose of Ta'zir. It may be mentioned here that confessions are of two kinds, Judicial and Extra-Judicial. Judicial confessions are such as are made before a Magistrate or in the Court, in the due course of legal proceedings and they included confessions recorded under section 164,

Cr. P.C. and though the confessions recorded by Magistrates under section 164, Cr.P.C., alone may not be sufficient to establish the charge under section 8(a) of the Ordinance, yet these confessions can be taken into consideration in the cases covered by section 10 of the Ordinance.

In the case of *The State vs. Gulab Hussain alias Ghulam Hussain and 3 others* reported as PLD 1994 Federal Shariat Court 17, a Division Bench of this Court was pleased to hold that the confession which can be made use of for the purpose of Hadd is not the same which is required in the case of Ta'zir, inasmuch as in the first case the confession must be recorded by a Court of competent jurisdiction i.e. a Court of Session, but in the second case it is not necessary that it should be recorded by such Court only. In other words, in the case of Ta'zir confession made before a Magistrate can also be taken into account. It was further observed that confession when retracted though became redundant in the case of Hadd shall continue to be a piece of evidence in the case of Ta'zir. We, therefore, do not feel persuaded to agree with the contention of the learned counsel for the appellants. , - 19. There is nothing on record to establish that the confessions were not voluntary. Element of force or torture does not appear to have been alleged by any« appellant while cross-examining PW.12. The fact that twelve days elapsed between their arrest and confession has to be appreciated in the light of the attending circumstances. In the case of *Shaista Begum etc. supra*, the FIR had been lodged in a murder case after almost a month of the occurrence. In the instant case the element of instant discovery of dead-body on the specific pointation of appellants and the recovery of the stolen car from their possession is not an ordinary factor. The various steps leading upto murder and pointations and discovery of incriminating materials were mentioned in the confessional statements. The appellants had been sent to Peshawar Jail by Poltiical Agent from where the police retrieved them vide application Ex.PW. 13/2 moved on 3.12.2003 before the Sessions Judge who allowed the same on 4.12.2003. The confessions were recorded on 10.12.2003 and its contents stood proved by the conduct of appellants who had pointed out all those things on 28.11.2003 immediately after their arrest. Article 40 of the Qanun-e-Shahadat makes it abundantly clear that any fact discovered on the information of an accused person is relevant and can be proved even if it amounts to a confession. The argument that the appellants were in custody of police since 28.11.2003 is therefore not the correct position.

20. Confession, apart from being voluntary and recorded according to prescribed procedure, has of course to be proved at the trial. The confession has to be taken as a whole for the purpose of appreciation. Confession made in the presence of another accused may not be treated as voluntary. Confession of one accused involving the other accused may however be corroborated by the confession of the latter who had been assigned a definite role by the former. The confession recorded under section 164 of the Code of Criminal Procedure is presumed to be voluntary and genuine unless proved to the contrary by attending circumstances. A statement recorded under section 164 *ibid* is of higher authenticity than a statement recorded under section 161 *ibid*. However a judicial confession which has been corroborated by discovery of car possessed by deceased immediately before his death as well as discovery of dead-body on the pointation of accused immediately after his arrest and duly proved at the trial and corroborated by independent witnesses can become a valid basis of conviction even though the accused in due course of time opts to retract the confession.

21. We have carefully examined the text of confessional statements made by Shabbir and Shakeel appellants. These statements are not verbatim copies of each other. The codal formalities prescribed by Section 364 of the Code of Criminal Procedure were duly observed. The Magistrate had taken all the necessary precautions. Necessary questions were also put to the appellants to satisfy herself that the statements about to be made by the appellants were voluntary and there was no element of force employed upon them. 1 CONFESSION IN

JURISPRUDENCE 22. The subject of confession in the criminal jurisprudence, as developed by Muslim jurists, may now briefly be considered here because under section 4 of the Enforcement of Shariat Act, 1991 as well as section 338-F of Pakistan Penal Code the Courts are required to seek guidance from the Injunctions of Islam.

23. The case under examination is one of those rare cases in which the accused is apprehended soon after the occurrence. The accused produced the stolen car and also led the police to the place of occurrence and on their pointation the corpse of Abdul Malik, driver of the ill fated car, was recovered alongwith other belongings and sundry incriminating articles. All these discoveries are straightaway linked with the offences of Qatl-e-Amd and Robbery. The appellants made voluntary confession before a Magistrate which was duly recorded and later on proved at the trial. The confessional statements were detailed narrative of the occurrence and endorsed the authenticity of the pointations and consequent discoveries made on 28.11.2003. The offence in fact fell under section 397 of the Penal Code because death was committed in the course of robbery wherein the punishment for a period of less than seven years could not have been awarded.

24. Learned Trial Court, in paragraph 12 of the impugned judgment, found that the car had been snatched from Abdul Malik deceased by force whereafter he was murdered, but he refrained from convicting the accused under section 17(4) of Ordinance VI of 1979 because according to his assessment the accused "had retracted the confessional statement. Moreover, the prosecution had failed to produce two eye-witnesses of the occurrence." Learned Trial Judge was of the view that under the circumstances Section 20 of the Offences Against Property (Enforcement of Hudood) Ordinance 1979 did not apply. This finding and observation of the learned Trial Judge is erroneous for two reasons: firstly, as pointed out in detail in this judgment, the confession made by an accused person before a Magistrate and duly recorded under section 164 of the Code of Criminal Procedure, relating to an offence under Ordinance VI of 1979 i.e. an illegal act covered by the mischief of the offence of Zina or Qazf, is legal evidence because it was recorded before commencement of trial by a Court of competent jurisdiction. The Court can, other things being equal, record conviction on the basis of a valid and voluntary judicial confession, duly proved at the trial.

Secondly the production of two Muslim adult eyewitnesses would arise only if Hadd punishment has to be awarded. In the event of award of Tazir the conditionality of prescribed number of witnesses stands waived.

OPINION OF MUSLIM JURISTS 25. The equivalent of the word CONFESSION in Arabic is IQRAR. Iqar has been defined in "A Dictionary of Modern Written Arabic" (by J. Milton Cowan) at page 753 is as under:- "Settling, settlement (of nomads); setting up, institution establishment; foundation; installation, instatement; delivery of a confirmation or assurance; confirmation, affirmation, averment; assurance; acknowledgement; confession, avowal, admission.

The meanings of the words IQRAR according to Al-Munjid Arabic-LJrdu at page 788 are as follows:-- 3 - Jc. J-UJt. UjS JSL, J \i JS -1 J&JS J U*a XJ J\ 'J\ r - ' ' » I . * ' > - J1 J* J U& Jj »*.

a»\j£ .iijj I£ JS 'J '1 IS Iji. J ' /UJft jill - up 1-ijj LH- * Uj&J jl j UjSk Uac- JS (jjiS I£ I oik Jk-jil illl. III (_J Jj** . Ujj jljjuH jjiu jil Jjll* . Ulaa*j . liUll tjilL UjS tjiiU. _>45l - JjU UU UU Jjl Ja». & 26. Iqar or Confession, therefore, means acknowledgement of guilt. It is evidence against the person who owns up culpability, misconduct or criminality of the act done or role played by him. A voluntary confession is the strongest proof in Islamic criminal justice system. It has been termed by Muslim Jurists as Sayed ul Hujaj i.e.

crown of all categories of sources of proof. The reason for calling it Sayed ul Hujaj is stated to be based upon Ayaat 13 15, Chapter 75 Sura Al-Qiyamah of Holy Quran: "On that Day will human being be apprised on his deeds, both the earlier and the latter But lo! Man is aware of himself (his doings) Even though he might make up excuses." The jurists also rely upon Ayah 282 of Chapter 2, Al-Baqra as well as Ayah 135 of Chapter 4, An-Nisa of Holy Quran in this respect. However the importance of confession (as well as Tawbah i.e., repentance) may be assessed from the story of Adam and Eve when they were ordered to "go down" whereafter came repentance which was duly accepted Reference Ayaat 36-37 Chapter 2, Al-Baqarah of Holy Quran: "(36) But Satan caused both of them to deflect from obeying Our command by tempting them to the tree and brought them out of the state they were in, and We said: "Get down all of you; henceforth, each of you is an enemy of the other, and on earth you shall have your abode and your livelihood for an appointed time".

"(37) Thereupon Adam learned from his Lord some words and repented and his Lord accepted his repentance for He is Much- Relenting, Most Compassionate".

Ayaat 159-160 of same Chapter "(159) Those who conceal anything of the clear teachings and true guidance which We have sent down even though We have made them clear in Our Book, Allah curses such people and so do all the curses".

"(160) Except those who repent and make amends and openly declare (what they had concealed). Such shall pardon for I am Much-Relenting, Most Compassionate".

Ayaat 17-18 of Chapter 4, An-Nisa is also relevant: "(17) (And remember that) Allah's acceptance of repentance is only for those who commit evil out of ignorance and then soon repent. It is towards such persons that Allah turns graciously. Allah is AllKnowing, All-Wise".

"(18) But of no avail is the repentance of those who do evil until death approaches any of them and then he says: "Now I repent". Nor is the repentance of those who die in the state of unbelief of any avail to them. For them We have kept in readiness a painful chastisement".

Ayah 39 of Chapter 5, Al-Maida (Holy Qur'an) may also be seen: "(39) But he who repents after he has committed wrong, and makes amends, Allah will graciously turn to him. Truly Allah is All-Forgiving, All-Compassionate".

Ayah 153 of Chapter 7, Al-Aaraf (Holy Quran) also supports this view: "(153) As for those who do evil, and later repent and have faith, such shall find their Lord All-Forgiving, All Compassionate after (they repent and believe)".

It may be pertinent to refer to yet another instance. Ayah 119 of Chapter 16, An-Nahl (Holy Quran): "(119) But to those who commit evil out of ignorance and then repent and amend their ways, thereafter your Lord will be Much Forgiving, Most Merciful".

27. The nexus between Confession and Tawbah is obvious though the latter is usually an affair between man and his Creator.

The erring human being realizes that he has transgressed and is as such accountable for his actions before his LORD and therefore to save himself from eternal punishment or having realized his audacity and restlessness before Allah Almighty, he admits his fault and sincerely turns towards Him and seeks, His Pardon. One of the oft quoted Divine attribute is Tawwab-ur-Raheem i.e., that He is Oft-Returning and forgives those who repent with all sincerity. However, this act of seeking forgiveness from Allah is usually a private affair.

28. The relationship of confession with punishment may be established from the following cases during the time of Holy Prophet PBUH: (i) Maiz Aslamie confessed four times about the offence of illicit sex before the Holy Prophet PBUH who is reported to have turned his face but the confessing accused appeared on the other side to face him again. Many questions were put to him to find if he would retract his statement or deny the commission of illegal act but the man persisted in the confession of guilt and then he was awarded the requisite punishment; (ii) In the case of a confessing woman from the Ghamadiya clan the punishment was deferred till she had delivered and the child was able to eat by himself. It is worth noting that in all the cases related to Zina the sentence was awarded only after intentional and voluntary confession had been made by the accused. There is no case where conviction was recorded on direct evidence of witnesses.

29. The person making a confession must be adult and sane. A statement made during sleep under the influence of drug or obtained by fraud or torture or duress would not amount to a confession. There is a tradition to the effect the his Ummah is not answerable for action done by mistake, forgetfulness or under coercion.

30. There is however divergence of opinion amongst the jurists on the question whether a single confession is sufficient to prove the offence or there must be more than one confessional statements? According to Imam Abu Hanifa and Imam Ahmad, it is necessary in the case of Zina that there must be four separate confessions as four witnesses are required to prove Zina by oral testimony. Basis of this argument is the case of Ma'iz, supra, who had confessed four times before the Holy Prophet PBUH prior to the award of death penalty. According to Imam Malik and Shaft, only one time confession is sufficient to prove all categories of offences. This reasoning is based upon the tradition wherein the Holy Prophet PBUH ordered Unyis, one of his companion, to go to a woman and stone her to death if she confessed commission of Zina. The Holy Prophet PBUH, it is argued, did not prescribe the number of confessions necessary for awarding Hadd punishment.

31. One of the characteristic of the confession in Islamic criminal justice system is that it operates against the maker alone and does not check the blame on his co-accused. This principle is based on the tradition where a man came to the Holy Prophet PBUH and confessed to be a guilty of adultery with a particular woman. On being questioned by an emissary the woman denied the charge whereupon she was not punished but the confessor alone was awarded Hadd punishment.

32. One of the conditions for the validity of confession is that it must be made before the competent authority. It is based upon the fact that Ma'iz Aslami had appeared before the Holy Prophet PBUH and made a voluntary confession. The jurists hold different opinions about an extra-judicial confession. According to Imam Abu Hanifa, the validity of an extra-judicial confession is questionable even if witnesses appear before the Judge to affirm the factum of such a confession outside the Court. The evidence of witnesses would not be taken into consideration for the reason that if a confessor had confessed before the Judge then in that case the offence would be deemed proved on the basis of his confession alone but if he retracts the alleged extra-judicial confession, his denial would be considered as retraction which factor cannot in itself become basis of conviction particularly where the right of Allah is predominant, like Zina and Boozing.

. * However, his refusal to accept the authenticity of his confession may not be treated as retraction in matters where the rights of individuals are predominant, like murder and hurt and other financial matters. Reference Badai'a Sinai's Urdu translation vol. 7 page 147. .

33. Imam Malik, Imam Shaft hold an extra-judicial confession to be valid if it is attested by the direct evidence of two witnesses.

Imam Malik and Imam Shaft however do not differentiate between offences whether the rights of Allah predominate or the rights of individuals are dominant. According to Imam Ahmad, four witnesses are required to testify the making of confession in the case of Zina. The extrajudicial confession according to Imam Malik is of no value if it has been repudiated. (Tashriul Jinai Vol. 2 section 542).

34. Another condition necessary for the validity of confession in offences wherein human dignity/human rights are violated the jurist insists that a complaint by the aggrieved person must have been moved before competent authority. In the absence of an information of crime it will be presumed that the complainant has pardoned the accused. (Nazriyatul Ithbat fi Fiqhil Islami by Bhansi Ahmad fathi page 170) 35. In Islamic criminal justice system delay does not make the confession inadmissible though delay in the production of evidence to prove the case creates suspicion. The reason is that realization of guilt on the part of accused :an occur at any time and no sane person would invoke punishment for nothing. However Hanafi Jurist do not accept delayed confession in drinking alcohol.

Confession by a person after disappearance of alcoholic effect is not deemed valid. Imam Muhammad however has fixed a period of one month for the validity of a confession in the offence relating to intoxicating liquor.

A. REPUDIATION OF CONFESSION 36. Retraction from confession is admissible in matters where Haqooq Allah are involved like Zina and Boozing before or after the announcement of judgment or even during the execution of the punishment. Retraction from confession is not permissible in matters where Haqooq-ul-Ibad are predominant e.g. murder, hurt and cognate violations. Once a right is created as a result of confession, the confessor will be liable for that. Retraction may be express or by conduct e.g. running away during execution of Hadd would amount to repudiation of confession. According to majority of the jurists like Imam Abu Hanifa, Imam Malik and Imam Ahmad, retraction in express word is not a condition precedent and the fact that an accused ran away during the execution of punishment would amount to retraction. According to Imam Shaft, however, retraction in express word is a condition for its acceptance. Running away during the execution would not, according to him, amount to retraction. The majority of the jurist have derived arguments from the case of Mai'z bin Aslami who attempted to run away at the time of execution of sentence when the people chased him and pelted stones upon him and he cried. "O people! take me back to the Holy Prophet. My people have deceived me by saying that the Prophet will never kill him: Mai'z died as a result of stoning and the matter was then brought to the notice of Holy Prophet PBUH who reportedly said "Would that you have left him free" (unpunished). The majority of the jurists have derived argument from this tradition to state that retraction by conduct is admissible even at the time the punishment is being executed. On the other hand, the Shaft jurists are of the view that, had this conduct amounted to retraction, the Holy Prophet PBUH would have punished the killers by way of Qisas and there is no such instance. Retraction, according to them, must be in a clear and unambiguous terms. As far as the retraction from confession in matters where the rights of community and rights of individuals are equally involved, like theft, the extreme punishment shall not be awarded to the confessor. However he would be liable to return the stolen property to its owner. In case of change in the contents of the previous statement e.g. that the property stolen belonged .to some one other than the complainant, the Hadd punishment shall not be implemented on account of doubt created as a result of second statement of the confessor. The established principle of Shariah in this respect is that Doubts nullify Hudood. Similarly if, in an offence of Zina, the

accused had initially claimed to be a Mohsin (being married) but later on pleaded to be unmarried, he shall not be awarded capital punishment and would be liable for the punishment of 100 stripes. In the event that the evidence of four male witnesses proves the offence of Zina and the accused also makes a confessional statement but later on he retracts from his confession, then according to Hanafi jurists, Hadd punishment * shall not be awarded whereas according to Malik, Shaft and Imam Ahmad, Hadd punishment shall be awarded, because the offence of Zina was initially proved on account of confessional statement and then it was also proved by the evidence of four witnesses. However there is difference of opinion where the case is first proved by the confessional statement and then subsequently by direct evidence. According to some Shaft jurists, Hadd punishment will be awarded even if the offence of Zina was proved as a result of confession even though he retracted from it. The reason advanced is that the evidence of witnesses is a stronger source of proof and the offence stands proved on the basis of direct evidence with consequential Hadd punishment. The other view point is that Zina stood proved as a result of confession.

37. Shaikh Toosi in his book *Al-Nihaja*, at page 696 noted that an Imam has the direction to withhold Hadd from a person who makes clean breast of the offence and simultaneously expresses Tawbah. Sheikh Mufeed has also expressed similar opinion by saying that Hadd may not be enforced upon an adulterer if he has expressed Tawbah. It is also stated that if Tawbah is expressed after the offence has been established on the basis of evidence the Imam may still, in his direction, forgive the accused or suspend the imposition of Hadd. Chapter 18 of the Book *Wasail ul Shia*, relating to *Muqadamatul Hudood* i.e. cases relating to Hudood, records that Imam has the discretion to forgive a sinner/offender after he has made a confession before the allegation established through direct evidence. This is also mentioned in *Tahreer ul Waseelah*.

This viewpoint developed in due course of time on the basis of a tradition that a person who has performed Tawbah is like a person who has committed no offence/sin and consequently no punishment can be awarded to an individual who is not a transgressor/sinner.

38. In cases where extreme punishment, what we call imposition of Hadd, is not to be awarded, the Judge has a discretion to accept a confessional statement if legal requirements in recording and proving the voluntary statement have been fulfilled.

Retraction under the circumstances may not be helpful where the confessional statement corroborates pointation earlier in time due to which the cavader and stolen property was recovered at the behest of accused. In the absence of independent corroboration the judicial mind may be hesitant in accepting the veracity of a retracted confession. But this is not the situation is the case under consideration.

B. TAWBAH AND IQRAR 39. Iqar i.e., confession and Tawbah i.e., repentance are not necessarily inter-related. Tawbah however includes Iqar but Tawbah is not an essential ingredient of Iqar, J. Milton Cowan in his "A Dictionary of Modern Written Arabic (at pages 98, 99) defines Tawbah alongwith its root as (>«-j3 Taba u taub, (vj3 taub, tauba matab) to repent, be penitent, do penance; with to turn from (sin), be converted from, renounce, ' forswear s.th.: (said of God) to restore to His , > grace, forgive (tr®' s.b.) to turn to God in repentance II to induce to repentance or penitence, make repent, - Tauba repentance, penitence, contrition; penance contrition; penance tawubah doing penance; repentant, penitent, contrite; forgiving, merciful (God) 13 -taib repentant, penitent, contrite (J Milton Cowan A Dictionary of Modern Written Arabic, pages 98, 99).

40. The Urdu translation of the word Tawbah and its root according to *Al-Munjid* (page 118) is as follows;- ' .Jlt . AJJJ J Illoj ilj j ilJJ (ij) l-l'j jiUj jll. 331 (l_u\j)CIL*a Ujj j .(<_ll JJ) i-iim .U m J*jS J

(Ji-iaj (A "I ' Aautua 10)0*11) 41. A tradition of the Holy Prophet PBUH states that the feeling of great sadness over wrong deed or omission of an obligatory act by him is a kind of tawbah. It therefore means that the feeling of sorrow is an integral part of tawbah. It is 1 important to note that the exaggerated form of noun from this root, Tawbah is used for both Allah as well as His servant. When applied to a human being, it means the "servant" who repents much and' very often by abjuring the path of disobedience and adopting the course of conformity with the dictates of Allah.

When applied to Allah, it would mean the One who returns quickly and immediately with favour and forgiveness towards His servant. Thus, the meaning clearly indicates that the elements of sorrow, unqualified admission of guilt and a conscious resolve to abstain from evil, in future, are essential ingredients of tawbah when applied to human beings. Tawbah according to Ghizali has three ingredients: Knowledge, Condition and Action. All the three constituents .are inter-related, inter-dependent and have nexus with the person undergoing repentance, process. Knowledge signifies that the repented understands, realizes and knows the gravity of the wrong committed by him and consequently regrets its perpetration. The Condition is the element of immediate abstention from wrong act. The Action means his determination to eschew the corrupt or dishonourable act throughout his life.

In purely spiritual and religious matters, tawbah is something that takes place inwardly between a servant and his Creator.

However, tawbah in criminal offences has wider and deeper dimensions. In every criminal act, committed in violation of the dictates of Shariah there are two aspects: violation of Allah's rights i.e., the rights of community (Haqooq Allah) and violation of rights of human beings. (Haqooq ul lbad) Tawbah in cases where Allah's rights have been violated can be resorted to at any time and at any stage of life till the moment when the process of death actually starts. However, tawbah is not admissible in offences involving Huqooq ul lbad. In cases erf Hudood the tawbah factor is admissible only to the extent of human rights. A person may forgive a repenting thief from claiming back the stolen property but he cannot save him from the execution of punishment once the Court has taken cognizance of the case. The following Ayaat may be quoted profitably: (i) Ayah 160 Chapter 2, Sura Al-Baqarah, Holy \ Quran: .

Except those who repent and make amends and openly declare (what they had concealed). Such shall I pardon for I am Much- Relenting, Most Compassionate.

(ii) Ayah 135 Chapter 3, Sura Ale-Imran, Holy Quran: S* & 'SP j1 % jfcU'j - bj&i ijia u j* £ ill* % Those are the ones those who, when they commit any indecency or wrong themselves, instantly remember Allah and implore forgiveness for their sins for who will forgive sins save Allah? And do not wilfully persist in the wrong they had committed: ins' uit i»j ujfc i >6 t# oj -) tfjf Punish both of those among you who are guilty of this sin, then if they repent and mend their ways, leave them alone. For Allah is ever ready to accept repentance, is All-Compassionate. / (iv) Ayah 17, Chapter 4 Surah An-Nisa, Holy Quran: r & J1 4JLJ1 o(STj , *jijt (And remember that) Allah's acceptance of repentance is only for those who commit evil out of ignorance and then soon repent.

It is towards such persons that Allah turns graciously. Allah is Al-Knowing, All- Wise..

& UU* U «il J>1*- ii FJIL j* (Xkjtj M u Jtf iij *~jb iyyj' Ot J»»J' yuai- ojl jjiil ifyri CJTF j* Thereupon the king asked the women: "What happened when you sought to tempt Joseph?" They said: "Allah forbid! We found no evil in him." The Chiefs wife said: "Now the truth has come to light. It was I who sought to *empt him. He is indeed truthful." vii) Ayah 70, Chapter 25, Al-Furqan, Holy

Quran: iii' UISTj IU' Jirf ibljS \»JCe LUI <-»ti Jt Uj - j >jJ* Unless he repents and believes and does righteous works. For such, Allah will change their evil deeds into good deeds. Allah is Ever Forgiving, Most Compassionate.

(viii) Ayah 71, Chapter 25, Al-Furqan, Holy Quran: - a Ji &JC, Jti jij Whosoever repents and does good, he returns to Allah in the manner that he should.

CONFESSION AND RES GESTAE 42. Res Gestae means things done, including words spoken, in the course of an event. This is different from confession. The phrase is used commonly in connection with evidence. It is related with admissibility of words spoken e.g. cries of a woman who is being ravished. Res gestae is something said or done spontaneously and without »deliberation. It is an utterance or exclamation at the spur of moment. It excludes the idea of pre-meditation or consultation whereas confession is a voluntary statement of a person who narrates an incident that has happened in the past. He acknowledges his part of the guilt in a particular illegal or immoral act. The element of self-incrimination is an ingredient of confession. It has been held that statements of collateral facts, not criminating within themselves, but depending on other and outside evidence, disclosing a chain of circumstances incriminating in character, are not confession. Such words may amount to "voluntary statements." Confession is usually relatable to an intentional voluntary statement or declaration of a person charged with commission of crime wherein he acknowledges himself to be guilty of the offence charged and discloses the circumstances of the act, or his share and participation which he had in it. In short it may be said that confession in a legal parlance is restricted to an acknowledgement of guilt made by a person before some one after an offence has been committed. , CHAIN OF EVENTS 43. In order to arrive at some conclusion and to fix responsibility in a case of this nature it is necessary to scan the chain of crucial events where direct evidence is not available on record. The chronology of events in this case is as under:- 25.11.2003 (i) At 4.00 p.m. three persons hired a yellow cab Toyota 1993 model registration No. 9584/RIR, driven by Abdul 'Malik, from Rawalpindi for a visit to Peshawar Sherpao Hospital against a sum of Rupees sixteen hundred (confessional statement of Shakeei appellant dated 10.12.2003) 26.11.2003 (ii) Appellants arrived in Nowshera in the evening wherefrom they proceeded towards Bahadar Khel after dinner in Main Bazar. Change of destination was intimated by appellants. On the way the appellants killed Abdul Malik in a desolate jungle near Tangee Khattak and after depositing his corpse in the nearby bushes took the car towards Tribal Area where they spent the night in Karkhano Peshawar (narrated by appellants in their confessional statements).

27.11.2003 (iii) Muhammad Parvez complainant, since dead, was worried as his car and driver had not shown up. He rummaged around till he received information from Nasar-ullah Afridi, Press Reporter of Daily Mashriq, that his car has been spotted in the Tribal Area at Jamrud (vide FIR Ex.PA, dated 28.11.2003).

(i) Complainant reached Jamrud and identified his car No. 9584/RIR. Accused Afzal Ali, in custody of staff of Political Agent, told him that he alongwith Shakeel and Shabbir appellants had killed the driver whose dead-body was lying at the place of occurrence, (vide FIR Ex.PA dated 28.11.2003).

28.11.2003.

(ii) Crime information is formally given to Nowshera police and investigation is undertaken while Khasadar Officers from Jamrud were also present. .

(iii) Recovery of dead-body from the shrubs alongwith other incriminatory material was effected on the pointation of Shakeel appellant and Shabbir. Accused taken back to Jamrud. They were

sent to Peshawar Jail after 2 days from where Nowshera police retrieved them.

(iv) Appellant Shakeel and Afzal Ali accused were taken by Khasdars to Nowshera.

(i) The appellants reached Jamrud with 26.11.2003 ? stolen car.

Shabbir appellant received Rs. 5000/and left for Azad Kashmir with the promise that the balance of his share of the booty will be paic after sale of car.

(ii) Appellant Shakeel alongwith Afzal Ali accused spent the night (between 26th and 27th November) in the vehicle. The car was parked in Teddy Market where mechanic run their workshops.

(i) Blood-stained clothes and other incriminating objects were dumped whereafter Afzal Ali accused went to a P.C.O. A call was made to an acquaintance Akram in Sakha Kot for sale of car, who refused to purchase it as it was crime property. A person from the Kharadar security force in mufti, was standing nearby whose presence was not noticed by appellants. (This person laid information with hie office).

28.11.2003 (ii) Thereafter the appellants party went towards the car and after some time returned to the same PCO for another gall when 8/10 Constables surprised them and after arrest both the accused hamely Shakeel appellant and Afzal Ali were taken to the police station of Khasadar.

(iii) Stolen car was recovered on the pointation of Shakeel and Afzal Ali accused. Enquiry into the matter commenced thereafter.

44. List of various memos, has been detailed below.

These documents divulge many aspects of this case: (i) Ex.PB the site plan without scale dated 28.11.2003 prepared by PW.13 Fazal Subhan, S.I. indicating point No. 1 from where car No. 9584/R1R was snatched by Afzal Ali (since dead) and Shakeel and Shabbir appellant; point No. 1A where deceased Abdul Malik was killed by appellants; point number IB where dead-body of deceased driver was thrown; point No. 2 where Afzal Ali accused used force to snatch the car; point No. 3 where Shakeel appellant was present when car was being snatched; point No.

4 where Shabbir appellant was present at the time the deceased was being relieved of the car; point 2A where Afzal Ali accused murdered the deceased with a stone; point No.3A where Shakeel appellant was present when the deceased was being attacked and point No. 4A where Shabbir appellant was present at the time of murder of Abdul Malik driver. These points were indicated by Afzal Ali accused soon after the occurrence. On 5.12.2003 all the appellants pointed out all these points. Ex.PB is the Site Plan. Ex.PC/3 is recovery memo, relating to Registration Book of stolen car Ex.PC/4 is the place from where dead-body of Abdul Malik was recovered. Ex.P.C. is the recovery memo, of car.

(ii) Ex.PC/4, dated 28.11.2003: the dead-body of Abdul Malik was discovered on the pointation of Afzal Ali accused. He had also pointed out places where dead-body was thrown after being killed.

45. It may be noted that originally three persons i.e., the two appellants and Afzal Ali faced trial and were convicted and sentenced by virtue of one judgment which is impugned in these two appeals. Accused Afzal Ali had filed a separate appeal which was registered as Jail Criminal Appeal No. 2/P of 2009. The said Afzal Ali died on 6.3.2010. His appeal consequently abated as

is evident from the order dated 3.3.2011 of this Court. Therefore the name of Afzal Ali accused will not appear in the concluding part of this judgment. ' THE DENOUMENT 46. We have considered the contents of the confessions as well as the statement of Mrs. Rozina Rehman, Senior Civil Judge, PW.12 and the statement of appellants. The factum of recoveries on the pointation of appellants has also been examined. The chain of events in this case has also been) scanned. We have, after considering all the facts, come to the conclusion that the statements of the appellants recorded under section 164 of the Code of Criminal Procedure recorded by PW.12 were not only voluntary but corroborated the discoveries made earlier at the bidding of appellants. The Muslim Criminal Jurisprudence does not dissuade us to accept and base judgment on voluntary statement even though repudiated. The very act of revoking judicial confession in this case is not convincing. The appellants had gone to the extent of saying in their statements without oath that they were tortured and made to thumb-mark the confessional statements which were recorded without observing legal formalities. This is far from truth because not even a single question suggesting torture or use of force was suggested to the Senior Civil Judge/Judicial Magistrate Kahot PW.12. Enough independent evidence is available on record to prove that the discovery of corpse, car and other incriminating articles took place on the express pointation of appellants. The prosecution witnesses had no reason to falsely involve the appellants in such a case.

47. In view of what has been stated above we have not been persuaded to interfere in the impugned verdict of learned Trial Court whereby the appellants were convicted and sentenced to various punishments under section 302(b) as well as section 392 of Pakistan Penal Code. The appellants have already been dealt with leniently because the trial took place under Juvenile Justice System Ordinance, 2000. Section 12 of this Ordinance restrains every Court from awarding punishment of death to an accused below the age of 18 years under any law for the time being in force. Appellant Shakeel has been awarded simple imprisonment while the sentences of appellants under both the counts have been directed to run concurrently apart from the grant of benefit of section 382i-B of the Code of Criminal Procedure. The offences with which the appellants were charged and the manner in which Abdul Malik was sucked in the tragic situation created by the appellants who, over-powered the unarmed and unwary driver, and brutally killed him after relieving him of his valuable possession do not recommend indulgence whatsoever.

Consequently Criminal Appeal No. 34/P of 2005 and Criminal Appeal No. 21/P of 2006 are dismissed. The convictions and sentences recorded by learned Trial Court in the impugned judgment dated 13.7.2005 are hereby maintained.

Appeals Dismissed/Convictions and Sentences Maintained.

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